



Glenda Moroni
58 Williams Street
BOYUP BROOK WA 6244

Shire of Boyup Brook

Dear Glenda

RE: FREEDOM OF INFORMATION REQUEST

The Shire has investigated your Freedom of Information request received on 20 January 2023 and is pleased to provide the following information.

- *Copy of presentation to Council made by CMCA before November 2021* – the presentation was made in person and via a Teams link and was not recorded. Please note the presentation contained information relating to a third party. The Shire is unable to provide this information.
- *Copy of Management Agreement* – attached
- *Copy of USB stick from CMCA* – The Shire did not keep a copy of the USB sticks, however this information is readily available from the CMCA website www.cmca.net.au

The Freedom of Information Act provides for a review and appeal process. You may seek an Internal Review if you are dissatisfied with the decision provided. If you are still dissatisfied following the internal review, then a review by the Information Commissioner may be requested. If you are still not satisfied, you may appeal to the Supreme Court.

If you would like to apply for an Internal Review, this must be lodged with the Shire within 30 days of receipt of this notice of the Shire's decision. The Shire will respond within 15 days, or any longer period as agreed between yourself and the Shire. There is no charge for an internal review.

If you are dissatisfied with the internal review, you may seek an external review by the Information Commissioner. This request must be made in writing within 60 days of receiving notice of the internal review decision and give details of the decision to which your complaint relates. Your complaint should be made to the Information Commissioner and addressed to:

Office of the Information Commissioner
Albert Facey House
469 Wellington Street
PERTH WA 6000

Any party to a complaint may appeal to the Supreme Court on any question of law arising out of a decision of the Information Commissioner, except for a decision as to the deferral of access to a document, the charges to be imposed

*country
choice*

Abel Street
PO Box 2
BOYUP BROOK
WA 6244

Phone:
08 9765 1200

Facsimile:
08 9765 1592

E-mail:
shire@boyupbrook.wa.gov.au

www.boyupbrook.wa.com.au

ABN: 95 583 688 034

for dealing with an access application and the payment of a deposit on account of charges.

Further information can be obtained from the Office of the Information Commissioner:

Telephone: (08) 6551 7888

1800 621 244 (toll free for WA country callers)

Facsimile: (08) 6551 7889 Email: info@foi.wa.gov.au

Web: www.foi.wa.gov.au

Address: Albert Facey House, 469 Wellington Street, Perth WA 6000

Yours sincerely

A handwritten signature in black ink, consisting of a series of loops and a long, sweeping horizontal stroke extending to the right.

Executive Assistant / FOI Coordinator

30 January 2023



Shire of Boyup Brook
www.boyupbrook.wa.gov.au

Abel Street Boyup Brook WA 6244
PO Box 2 Boyup Brook WA 6244

(08) 9765 1200
shire@boyupbrook.wa.gov.au

Freedom of Information Act 1992

APPLICATION FOR ACCESS TO DOCUMENTS

DETAILS OF APPLICANT

Surname MORONI Given Names Glenda Mary
Telephone 0897652958 Postal Address 58 Williams St
Email gmm449@gmail.com BOYUP BROOK
6244
Organisation Name (if application is on behalf of an organisation)

DETAILS OF REQUEST

I am applying for access to document(s) concerning matters which are (tick whichever is appropriate)

Personal ☐

Non-Personal ☒

These document(s) are:

A copy of a presentation to Council made
by CMCA before November 2021 as mentioned in Ordinary Council
Minutes from April 28, 2022 Council meeting item 10.4.1. Page 37
and copy of Draft Management Agreement + price agreement that

FORM OF ACCESS

I wish to inspect the document(s) Yes ☐ / No ☐ I require a copy of the document(s) Yes ☒ / No ☐

I require access in another form Yes ☒ / No ☐ Specify form required a copy of USB

FEES AND CHARGES

Attached is a cheque/cash to the amount of \$30.00 to cover the application fee. I understand that before I obtain access to documents I may be required to pay processing charges in respect of this application and that I will be supplied with a statement of charges if appropriate.

NOTE: In certain cases a reduction in fees and charges may apply. If you consider that you are entitled to a reduction, submit a request with supporting documents which address the criteria on the back of this form and support your application for a fee reduction.

I am requesting a reduction in fees and charges Yes ☐ / No ☒

APPLICANT'S SIGNATURE Glenda Moroni

DATE 20/1/2023

MANAGEMENT AGREEMENT

THIS AGREEMENT dated this 15th day of July, 2022

BETWEEN:

Shire of Boyup Brook (ABN 95 583 688 034)
of 55 Abel Street Boyup Brook, WA 6244
(the "Landlord")

OF THE FIRST PART

- AND -

Campervan & Motorhome Club of Australia Ltd (ABN 16 095 568 157)
of 49 The Avenue, Maryville NSW 2293, Australia
Telephone: (02) 4978 8788
(the "Manager")

OF THE SECOND PART

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The purpose of this Agreement is to set out the terms to operate and manage a CMCA RV Park on land owned by Shire of Boyup Brook hereafter known as the CMCA Eco RV Park Plus Boyup Brook. The intention is that the existing caravan park is operated under CMCA's Policies, Procedures and General Rules of Use (the latter of which, some are included in Schedule C).

The Parties to this Agreement agree as follows:

1. Definitions

When used in this Agreement, the following expressions will have the meanings indicated:

- 1.1 "Building" means all buildings, improvements, equipment, fixtures, property and facilities from time to time located within the Caravan Park, as from time to time altered, expanded or reduced by the Landlord through consultation with the Manager.
- 1.2 "Caravan Park" means the caravan park located at Jackson Street, Boyup Brook, Western Australia (see plan of area at Schedule A) currently known as 'Flax Mill Caravan Park' and to be renamed 'CMCA Eco RV Park Plus, Boyup Brook'.
- 1.3 "Claim" includes any claim, demand, cause of action, suit, proceedings, judgement, debt, fine, penalty, damage, loss, cost, expense or liability of any kind.
- 1.4 "Development Plan" refers to the agreed plan of improvement for the Premises to be developed with agreement from both Parties. This plan may be modified based on future needs and other uses of buildings within the Management Area. The schedule for development by the Landlord will be based on funding availability.
- 1.5 "Income Share" means the proportion of gross income that is retained by the Manager for each booking type. This will be reported monthly to the Landlord.
- 1.6 "Landlord Share of Income" means the proportion of gross income to be reported and paid monthly to the Landlord based on actual bookings and as set out in the agreed Schedule of Fees.
- 1.7 "Management Area" means the area containing all infrastructure and improvements necessary for the efficient operation of the caravan park, being the area shaded in the attached plan (referred as Schedule A).
- 1.8 "Overflow Area" refers to the area adjacent to the caravan park that can be used for self-contained camping and is included in the Management Area.
- 1.9 "Park Custodian" refers to an individual or couple who volunteer their time to undertake the roles and responsibilities within the Premises as determined by the Manager from time to time. The tenure of the Park Custodian is determined by the Manager. The Park Custodian will be a temporary position and may change over time.
- 1.10 "Premises" means the commercial premises at Jackson Street Boyup Brook WA 6244 (see attached plan of park) including the Overflow Area but excluding buildings not associated with the Caravan Park.
- 1.11 "Schedule of Fees" outlines the site prices and Income Share arrangement as agreed upon (referred as Schedule B for year 1).

2. Term

- 2.1 The term of this Agreement commences at 12:00 noon on 1 August 2022 and ends at 12:00 noon on 31 July 2027 (the "Term").
- 2.2 The Landlord agrees to provide to the Manager the Option to extend this Agreement for a further two periods of 5 years upon written request. This request will not be refused if the Manager has met its obligations under this Agreement and is not in default.
- 2.3 Should the Manager remain in possession of the Premises with the consent of the Landlord after the natural expiration of this Agreement, a new tenancy from month to month will be created between the Landlord and the Manager which will be subject to all the terms and conditions of this Agreement but will be terminable upon either party giving one month's notice to the other party.

3. Income Share Arrangement

- 3.1 Subject to the provisions of this Agreement, the Manager will report monthly bookings to the Landlord and payments to the Landlord for the Landlord Share of Income will be based on the agreed Schedule of Fees for that year. All payments will be made on a GST inclusive basis at the rate applicable at that time.
- 3.2 The Manager will pay the Landlord Share of Income on or before the 14th day of each month for the preceding month's bookings.
- 3.3 The Schedule of Fees will be negotiated and agreed upon by both parties, based primarily on any changes to the costs of either party in relation to the Caravan Park, and will be reviewed annually, prior to each anniversary of this Agreement, and set for the following year.
- 3.4 Despite clause 3.3, the Manager may adjust the fees, when necessary and in addition to the normal annual review, to ensure prices remain in line with any decision by the Manager regarding SCV pricing at its other RV Parks.
- 3.5 The Manager will operate a cashless booking system and no cash payments will be handled or processed by the Park Custodian.
- 3.6 The Manager and Landlord will equally share the costs of any new booking system that CMCA may incur in relation to this park.

4. Outgoings

- 4.1 The Landlord will be responsible for paying 100% of the following outgoings:
 - 4.1.1 Local council rates and charges.
 - 4.1.2 Land taxes.
 - 4.1.3 All utilities supplied to the Caravan Park and associated facilities including water, electricity and portable LPG.
 - 4.1.4 Security of the premises.
 - 4.1.5 All insurance relating to any infrastructure and buildings.
 - 4.1.6 Repairs and replacements to the building, and any component of the Building.

- 4.1.7 Preventive maintenance and inspections.
- 4.1.8 Waste management.
- 4.1.9 Sewer and septic system maintenance and repairs.
- 4.2 The Landlord agrees that the Manager will not be responsible for any outgoings relating to the Caravan Park. If the Manager pays any such outgoings, the Landlord will reimburse the Manager for those outgoings within 14 days of the date the Manager invoices the Landlord for the amount.

5. Use and Occupation

- 5.1 The Manager will use and occupy the Premises only for the purpose of a caravan park and connected activities and for no other purpose whatsoever. The Manager will not carry on business under the name of 'Flax Mill Caravan Park' and the Landlord consents to that change of name. The Manager will open the whole of the Premises for business to the public, staffed on the date of commencement of the Term and throughout the Term, and will continuously occupy and utilise the entire Premises in the active conduct of its business in a reputable manner on such days and during such hours of business as may be determined from time to time by the Landlord and Manager. Operation of the Caravan Park is subject to necessary closures due to weather or short-term operational requirements.
- 5.2 The Manager covenants that it will carry on and conduct its business of managing the Premises from time to time carried on upon the Premises in such manner as to comply with any statute, including any subordinate legislation, which is in force now or in the future and taking into account any amendment or re-enactment, or any government department, local authority, other public or competent authority or court of competent jurisdiction and of the insurers in relation to the management of the Premises (including in relation to health and safety compliance with the proper practice recommended by all appropriate authorities).
- 5.3 Except for those areas that are the responsibility of the Manager in accordance with clause 5.2, the Landlord covenants that:
 - 5.3.1 it will ensure that the Premises complies with; and
 - 5.3.2 it will carry on and conduct all its activities upon the Premises in such manner as to comply with,

any statute, including any subordinate legislation, which is in force now or in the future and taking into account any amendment or re-enactment, or any government department, local authority, other public or competent authority or court of competent jurisdiction and of the insurers in relation to the use, occupation and enjoyment of the Premises (including in relation to health and safety compliance with the proper practice recommended by all appropriate authorities).
- 5.4 The Manager will appoint a Park Custodian and the Park Custodian will have access and use of an ensuite camping site for the duration of their appointment at the Premises. The Park Custodian will be responsible for the cleaning of the ensuite. This site will be provided free of charge by the Landlord and no share of income will be paid in relation to it.

- 5.5 The Manager will provide all relevant branded signage for the operation of the Premises and the Landlord will install this signage in the appropriate locations as agreed between the two parties. Existing signage may be utilised as needed.
- 5.6 The Manager will develop all Emergency Management Procedures relevant to the Premises. A copy of these procedures will be displayed at the Premises, and another copy will be provided to the Landlord.
- 5.7 The caravan park amenities will be made accessible to all park guests except for those staying at the self-contained RV sites (unless the guest has paid the agreed extra nightly fee to access the amenities). The Landlord will install a pin pad entry system (or similar) to all amenities and ablution buildings at its cost.
- 5.8 The communal camp kitchen will be available for the use of all park guests at no cost to the guests. The Landlord will ensure that all utilities to the camp kitchen are provided and maintained at no cost to the Manager.
- 5.9 The Park Custodian will advise the Landlord or its contractor when each ensuite site is to be cleaned and will advise the Landlord or its contractor of all other cleaning required within the Premises. The Landlord or its contractor will undertake all cleaning as required on a regular basis to ensure the compliant operation of the caravan park and to allow ongoing bookings. This includes daily cleaning, supply of stock and cleaning products.
- 5.10 The Landlord will install and maintain all necessary fire suppression equipment including hose reels, fire extinguishers, fire blankets and any other measures as required by all relevant regulations. The Landlord will ensure compliance with these regulations to allow uninterrupted operation of the business.
- 5.11 The Manager and Landlord will negotiate the use of the Premises including the Overflow Area to facilitate the provision of accommodation during major events. The Manager will maintain the booking system for these events and the Landlord will provide extra resources, equipment and materials as required to ensure the safe and efficient provision of accommodation during such events.

6. Improvements

- 6.1 The Landlord and Manager will develop an agreed Development Plan for the Premises. The Landlord will be responsible for the implementation and execution of the Development Plan. This Development Plan will not impact negatively on the operation of the Caravan Park for its intended use.
- 6.2 This Development Plan may include other buildings owned by the Landlord that are not currently included in the Premises. The Development Plan may include the design and construction of new buildings that enhance or support the operation of the caravan park.
- 6.3 The future use of existing vacant buildings can be negotiated between the Parties.
- 6.4 The Manager will not withhold its permission for the third-party use of other buildings within the Premises (as per Schedule A) if this use does not impact on the efficient and effective operation of the Park. The Manager may negotiate use of other buildings under a separate arrangement with the Landlord.

- 6.5 The design and implementation of the Development Plan will be at the cost of the Landlord.
- 6.6 The Landlord will ensure there exists safe identified pedestrian access between the overflow camping area and the main caravan park precinct. This will be maintained in an operational state by the Landlord at its own cost.

7. Quiet Enjoyment

- 7.1 The Landlord covenants that the Manager will peacefully and quietly have, hold, and enjoy the Premises for the agreed term.

8. Additional Rights on Re-entry

- 8.1 If the Landlord re-enters the Premises or terminates this Agreement due to default by the Manager, then:
 - 8.1.1 Notwithstanding any such termination or the Term thereby becoming forfeited and void, the provisions of this Agreement relating to the consequences of termination will survive.
 - 8.1.2 The Landlord may use such reasonable force as it may deem necessary for the purpose of gaining admittance to and retaking possession of the Premises and the Manager hereby releases the Landlord from all actions, proceedings, claims and demands whatsoever for and in respect of any such forcible entry or any loss or damage in connection therewith or consequential thereupon.
 - 8.1.3 In the event that the Landlord has removed the property of the Manager, the Landlord may store such property in a public warehouse or at a place selected by the Landlord, at the expense of the Manager. If the Landlord feels that it is not worth storing such property given its value and the cost to store it, then the Landlord may dispose of such property in its sole discretion and use such funds, if any, towards any indebtedness of the Manager to the Landlord. The Landlord will not be responsible to the Manager for the disposal of such property other than to provide any balance of the proceeds to the Manager after paying any storage costs and any amounts owed by the Manager to the Landlord.
 - 8.1.4 After re-entry, the Landlord may terminate the Agreement on giving 5 days' written notice of termination to the Manager. Without this notice, re-entry of the Premises by the Landlord or its agents will not terminate this Agreement.

9. Inspections and Landlord's Right to Enter

- 9.1 The Landlord and the Manager will complete, sign and date an inspection report at the beginning and at the end of this Term.
- 9.2 During the Term and any renewal of this Agreement, the Landlord and its agents may enter the Premises to make inspections or repairs. Except where the Landlord or its agents consider it an emergency, the Landlord will provide the Manager with written notice 24 hours prior to entering.

10. Renewal of Agreement

- 10.1 Upon giving written notice no later than 60 days before the expiration of the Term, the Manager may renew this Agreement for an additional term in accordance with clause 2.2. All terms of the renewed Agreement will be the same unless otherwise agreed to by both parties.

11. Termination

- 11.1 This Agreement ends:
- 11.1.1 On the date stated in this Agreement (or any further option);
 - 11.1.2 3 months following written notification by either party to the other party to terminate the Agreement; or
 - 11.1.3 If the Landlord lawfully demands possession of the property (subject to Clause 22.1).
- 11.2 The Landlord can demand possession of the property if:
- 11.2.1 The Manager has repudiated this Agreement;
 - 11.2.2 Money due and payable by the Manager under this agreement is 30 days overdue for payment and no repayment plan has been sought by the Manager; or
 - 11.2.3 The Manager has not complied with any term of this Agreement and has not rectified such non-compliance within 30 days from receipt of a notice from the Landlord requiring such rectification.
- 11.3 Upon the expiration or termination of this Agreement, except with the prior written consent of the Manager, the Landlord must thereafter:
- 11.3.1 cease to use the name "CMCA" or "Campervan & Motorhome Club" or similar; and
 - 11.3.2 not permit any third-party to do so,
- whether in relation to the Caravan Park or any other business or activity operating from the Premises or otherwise, and must promptly remove all signage at or near the Premises which uses any such name.
- 11.4 Upon the expiration or termination of this Agreement, each party shall ensure that the Manager's booking system used for the Caravan Park is disengaged.

12. Manager Improvements

- 12.1 The Manager will obtain written permission from the Landlord before doing any of the following:
- 12.1.1 Painting, wallpapering, redecorating or in any way significantly altering the appearance of the Premises.
 - 12.1.2 Removing or adding walls or performing any structural alterations.
 - 12.1.3 Subject to this Agreement, placing or exposing or allowing to be placed or exposed anywhere inside or outside the Premises any notice or sign for advertising or any other purpose.

12.1.4 Affixing to or erecting upon or near the Premises any radio or TV antenna or tower, or satellite dish; or

12.1.5 Installing or affixing upon or near the Premises any plant, equipment, machinery, or apparatus without the Landlord's prior consent.

13. Utilities and Other Costs

13.1 The Landlord is responsible for all costs associated with park grounds maintenance including mowing, pruning, weed management, clearing, replacement of grass or other groundcover, maintenance of all impervious areas

13.2 The Landlord is responsible for cleaning of all wet areas, amenities buildings, communal camp kitchen, ensuite buildings (except for Park Custodian ensuite) and all other buildings within the Premises.

13.3 The Landlord is responsible for the maintenance and repairs of all coin operated equipment within the Premises and will collect all income from such equipment in lieu of this arrangement.

14. Insurances

14.1 The Manager is hereby advised and understands that the personal property of the Manager is not insured by the Landlord for either damage or loss, and the Landlord assumes no liability for any such loss.

14.2 The Manager is responsible for insuring the Premises for \$20million public liability insurance for the benefit of the Manager and the Landlord.

14.3 The Manager will provide proof of such insurance to the Landlord upon request.

14.4 The Landlord is responsible for taking and maintaining insurance over all buildings, fixtures, and infrastructure within the Premises. This insurance will cover repairs and/or replacement of all buildings and improvements.

14.5 The Landlord will provide proof of such insurance to the Manager upon request.

15. Indemnities and Limitations on Liability

15.1 The Manager will and does hereby indemnify the Landlord of and from all loss and damage and all actions, claims, costs, demands, expenses, fines, liabilities and suits of any nature whatsoever for which the Landlord will or may become liable, incur or suffer by reason of a breach by the Manager of any covenant or provision hereof or by reason of any construction for any work done or materials provided or services rendered for alterations, improvements or repairs, made by or on behalf of the Manager to the Premises (not including any construction or work done or material provided or services rendered by the Landlord), or by reason of any injury occasioned to or suffered by any person or damage to any property due to or arising from the Manager's management of the Premises, or by reason of any wrongful act or omission, or negligence on the part of the Manager or any of its agents, concessionaires, contractors, customers, employees, invitees or licensees in or about the Building.

15.2 The indemnity in clause 15.1 does not apply to the extent the loss, damage, action,

claim, cost, demand, expense, fine, liability or suit is due to the negligence, default or wrongful act or omission of the Landlord or to the extent the Landlord is indemnified or able to be indemnified under any policy of insurance to be taken out and maintained by either party in accordance with clause 14.

- 15.3 The Landlord will and does hereby indemnify the Manager of and from all loss and damage and all actions, claims, costs, demands, expenses, fines, liabilities and suits of any nature whatsoever for which the Manager will or may become liable, incur or suffer by reason of a breach by the Landlord of any covenant or provision hereof or by reason of any construction for any work done or materials provided or services rendered for alterations, improvements or repairs, made by or on behalf of the Landlord to the Premises (not including any construction or work done or material provided or services rendered by the Manager), or by reason of any injury occasioned to or suffered by any person or damage to any property due to or arising from the Premises or the Landlord's activities on the Premises, or by reason of any wrongful act or omission, or negligence on the part of the Landlord or any of its agents, concessionaires, contractors, customers, employees, invitees or licensees in or about the Premises.
- 15.4 The indemnity in clause 15.3 does not apply to the extent the loss, damage, action, claim, cost, demand, expense, fine, liability or suit is due to the negligence, default or wrongful act or omission of the Manager or to the extent the Manager is indemnified or able to be indemnified under any policy of insurance to be taken out and maintained by either party in accordance with clause 14.
- 15.5 Despite any other provision of this Agreement and to the extent permitted by law, the total cumulative liability of the Manager to the Landlord in respect of all Claims made by the Landlord under or in connection with this Agreement, whether arising under contract, negligence or any other tort, misrepresentation, under Statute or otherwise, shall not exceed:
- 15.5.1 the amount indemnified or indemnifiable under the policy of insurance required to be taken out in accordance with clause 14.2; or
- 15.5.2 if the Manager fails to take out and maintain the policy of insurance in accordance with clause 14.2, the amount that would have been indemnifiable under that policy if the Manager had fully complied with the obligation in clause 14.2 in respect of that policy,
- except that if the nature of the Claim is that it is not one that is indemnifiable under the policy of insurance required to be taken out in accordance with clause 14.2, such total cumulative liability of the Manager to the Landlord shall be limited to the total amount of the Manager's Income Share in the 12 month period immediately prior to the date of the Claim.
- 15.6 The limitation of liability in clause 15.5 shall not apply in the event and to the extent that the Claim is due to intentional misconduct of the Manager or any personal injury (including death) caused by the Manager.

16. Assignment and Subletting

- 16.1 The Manager will not assign this Agreement in whole or in part, nor sublet all or any part of the Premises, nor grant any license or part with possession of the Premises or transfer to any other person in whole or in part or any other right or interest under

this Agreement, without the prior written consent of the Landlord in each instance, which consent will not be unreasonably withheld so long as the proposed assignment or sublease complies with the provisions of this Agreement.

- 16.2 Before giving consent, the Landlord may require reasonable documentation to satisfy the Landlord that the proposed assignee or subtenant is capable of performing the Manager's obligations under this Agreement.
- 16.3 Notwithstanding any assignment or sublease, the Manager will remain fully liable on this Agreement and will not be released from performing any of the terms, covenants and conditions of this Agreement.

17. Care and Use of Premises

- 17.1 The Landlord must maintain in a state of good condition and serviceable repair the roof, ceiling, walls, doors, and floors of the Premises and must fix all defects.
- 17.2 The Landlord must maintain all essential services and ensure that these remain connected to the Premises.
- 17.3 The Manager will promptly notify the Landlord of any damage, or of any situation that may significantly interfere with the normal use of the Premises.
- 17.4 The Manager will not engage in any illegal trade or activity on or about the Premises.
- 17.5 The Landlord and Manager will comply with standards of health, sanitation, fire, housing and safety as required by law. If an authority requires work to be done on the Premises, then the Landlord must do the work as a matter of priority and in a good workmanlike fashion to ensure compliance.
- 17.6 Any work done or services provided by or on behalf of the Landlord on the Premises as required in this agreement must be commenced and completed in a timely manner.

18. Surrender of Premises

- 18.1 At the expiration or termination of the Agreement Term, the Manager will quit and surrender the Premises. The Manager is not liable to repair or make-good any part of the Premises upon such expiration or termination, except to the extent the need for the repair or make-good is due to the negligence or default of the Manager.

19. Dispute Resolution

- 19.1 Both parties agree to undertake any negotiations in an amicable manner.
- 19.2 If consensus cannot be reached on any matter the parties must endeavour to settle any dispute in connection with the Agreement by mediation. Such mediation is to be conducted by a mediator who is independent of the parties and appointed by agreement of the parties or, failing agreement within 7 days of receiving any party's notice of dispute, by a person appointed by the Chair of Resolution Institute, or the Chair's designated representative.

20. Hazardous Materials

- 20.1 The Manager will not keep or have on the Premises any article or thing of a dangerous, flammable, or explosive character that might unreasonably increase the danger of fire on the Premises or that might be considered hazardous by any responsible insurance company, and for the avoidance of doubt this does not include items such as motor fuels or LPG that may be brought onto the Premises in the ordinary course of managing or using the Premises.

21. Rules and Regulations

- 21.1 The Manager will obey all rules and regulations posted by the Landlord regarding the use and care of the Building, parking lot and other common facilities that are provided for the use of the Manager in and around the Building on the Premises.

22. General Provisions

- 22.1 Any waiver by the Landlord of any failure by the Manager to perform or observe the provisions of this Agreement will not operate as a waiver of the Landlord's rights under this Agreement in respect of any subsequent defaults, breaches or nonperformance and will not defeat or affect in any way the Landlord's rights in respect of any subsequent default or breach.
- 22.2 This Agreement will extend to and be binding upon and inure to the benefit of the respective administrators, successors and assigns, as the case may be, of each party to this Agreement. All covenants are to be construed as conditions of this Agreement.
- 22.3 All sums payable by the Manager to the Landlord pursuant to any provision of this Agreement will be recoverable by the Landlord as Landlord Share of Income arrears.
- 22.4 Time is of the essence in this Agreement.
- 22.5 This Agreement constitutes the entire agreement between the Landlord and the Manager in relation to its subject matter. Any prior understanding or representation of any kind preceding the date of this Agreement will not be binding on either party to this Agreement except to the extent it is incorporated in this Agreement. In particular, no warranties of the Manager not expressed in this Agreement are to be implied.
- 22.6 Despite any other provision of this Agreement, neither party shall in any event be liable to the other party under or arising from this agreement for any Consequential Loss or Damage whatsoever suffered or incurred by the other party. "Consequential Loss or Damage" includes pure economic loss or loss of profits or anticipated profits, loss of production, loss of expected savings, loss of business opportunity, business interruption, loss or reduction of goodwill, damage to future reputation or adverse publicity, damage to credit rating or indirect or special loss or damage.

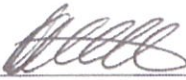
Execution Page

IN WITNESS WHEREOF the Parties to this Agreement have duly affixed their signatures under

hand, on this 1st day of JULY, 2022

Shire of Boyup Brook

(ABN 95 583 688 034) (Landlord)


(Witness)

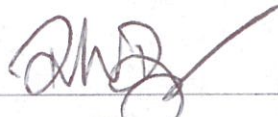
Signed: 

Name: DALE RUTLAND

Campervan & Motorhome Club of Australia Ltd

(ABN 16 095 568 157) (Manager)


(Witness)

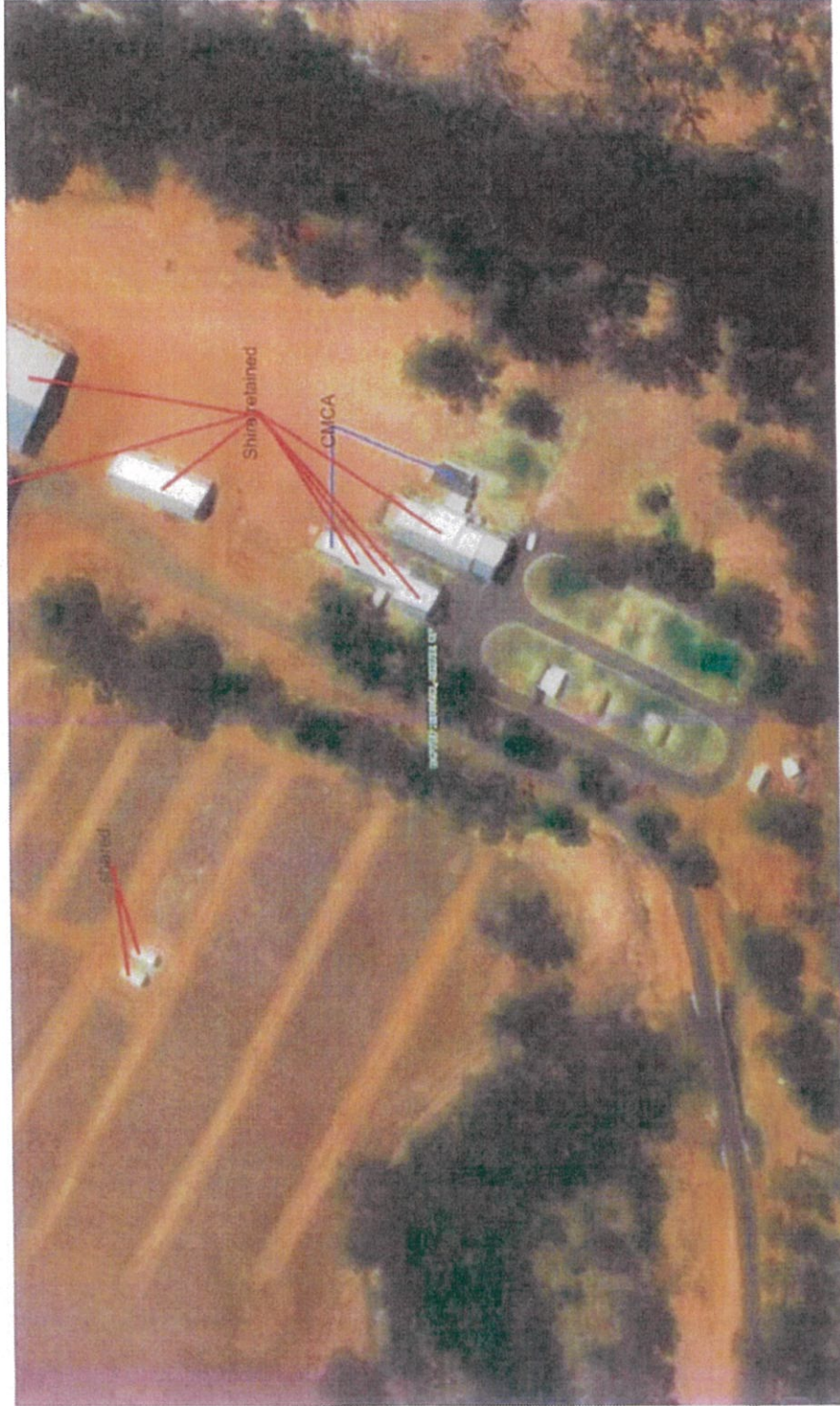
Signed: 

Name: RICHARD BARWICK

CMCA Flax Mill Caravan Park Boyup Brook



Schedule "A"



Schedule "B"

CMCA member rate per RV per night					Non-member rate per RV per night				
Site type	solo	couple	Additional adult	Paid to council	Solo	Couple	Additional adult	Paid to council	
Ensuite sites	\$32.00	\$36.00	\$4.00	\$28.00	\$40.00	\$45.00	\$5.00	\$35.00	
Powered sites	\$24.00	\$28.00	\$4.00	\$20.00	\$27.00	\$32.00	\$5.00	\$22.00	
Basic site - including tents	\$13.00	\$17.00	\$4.00	\$9.00	\$20.00	\$25.00	\$5.00	\$15.00	
Self-contained RVs	\$5.00	\$7.00	\$2.00	\$4.00	\$15.00	\$15.00	NIL	\$9.00	
Self-contained RVs + access to toilets and showers	\$8.00	\$10.00	\$2.00	\$7.00	\$18.00	\$18.00	NIL	\$12.00	

Notes –

1. The fee for additional adults (deemed to be persons 16 and over) is payable to CMCA.
2. The rates for ensuite sites are based on 3 night minimum stays.
3. The above rates are GST inclusive.

CMCA RV Park Plus

General Rules of Use – Summary

Schedule “C”

- Vehicles must comply with the CMCA Self Contained Vehicle Policy & leave No Trace® Code of Conduct to camp in the self-contained camping area.
- Vehicles in other areas must adhere to not dropping any grey-water on the grounds – all disposal is to be via plumbed sullage and/or dump points.
- Temporary Parking only – maximum of 14 nights within any 21-day period.
- Generators only between 8:00 AM & 7:00 PM, 4 hours maximum per day and 2 hours maximum at any one time.
- Dogs on leads at all times outside of the vehicle – owners responsible for behaviour, and cleaning up after pets. Dogs not to be left in vehicles alone if this results in a nuisance to others staying at the Park.
- Park guests must comply with park Custodian directives.
- Parking – a minimum 3 metre space is to be left between RVs.
- Rubbish must be disposed of in the bins provided.
- No campfires are permitted unless in the designated communal fire pit (if provided).
- Park guests must be aware of site emergency procedures.
- No smoking/vaping permitted unless in members own vehicle/tent or in designated smoking area (if provided)
 - smoking not permitted outside confines of RV/tent, including under awnings etc.

